



File No.: EXP202316537

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 20, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against A.A.A. (hereinafter the respondent). After notifying the initiation agreement and analyzing the allegations presented, on September 30, 2024, the proposal for resolution was issued, which is transcribed below:

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File No.: EXP202316537

Sanctioning Procedure No. PS/00036/2024

PROPOSAL FOR RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: B.B.B. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on October 22, 2023. The complaint is directed against the hotel establishment named "POSADA EL AZUFRAL," whose owner is A.A.A. with NIF ***NIF.1 (hereinafter, the respondent).

The reasons on which the complaint is based are as follows:

- The claimant states that on July 26, 2023, they made a reservation for a room through the website booking.com at the hotel establishment POSADA EL AZUFRAL, S.C., for the dates August 25, 2023, to August 26, 2023.
- They indicate that on the same date, July 26, 2023, they received an email from the establishment to carry out the early guest registration ("pre-registration" or "pre-check in online"), which included a link directing them to the website of an application called "Partee," which requested them to fill in certain data and attach a photograph of both sides of their ID. The claimant provided their data to register through this web application but did not submit an image of their ID, considering that request excessive, communicating this circumstance to the establishment via the messaging system of booking.com.
- They state that upon arriving at the inn where they made their prior reservation on the scheduled date of entry, August 25, 2023, the respondent required them, as a condition for providing the reserved room, to hand over their ID to take a photograph for the online check-in or a photocopy for manual check-in. The claimant refused, considering that such a requirement is contrary to data protection regulations, and was denied accommodation.
- The claimant requested a complaint form from the establishment and filed the relevant complaint with the competent tourism department of the Government of Cantabria.

Along with the complaint, the following documentation is provided, which is supplemented by a letter dated November 13, 2023:

- Reservation of accommodation made through booking.com on July 26, 2023.
- Message sent on July 26, 2023, to the claimant by Posada El Azufral via booking.com, stating: "Please, to expedite your registration at POSADA EL AZUFRAL, August 25, 2023, click on the following LINK and fill in the form with your ID, Passport, or NIE data." This link directs to the "app.partee check in online."
- New message received on August 25, 2023, from "Partee check-in online" warning that they can complete the online registration until the same day, August 25, 2023, and that it is necessary to fill in the information from the link to comply with the regulations on entry reports and the lodging register.
- Screenshot of the data form to be filled out in the app for online check-in.
- Complaint form submitted to Posada El Azufral on August 25, 2023, upon cancellation of the reservation, and submission of such complaint to the tourism department of the Government of Cantabria.
- Royal Decree 933/2021, of October 26, which establishes the obligations for documentary

registration and information of individuals or legal entities engaged in lodging and motor vehicle rental activities.

- Resolution of sanctioning procedure No. 78/2021 published by this Spanish Agency for Data Protection.

- Extract from the privacy policy section of the PARTEE application (www.app.partee.es), which includes a link to the data processing agreement.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), this complaint was forwarded to A.A.A., who appears as the data controller in the privacy policy section of the website RATES AND POLICIES | EL AZUFRAL, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The forwarding was carried out by postal means in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of the

C/ Jorge Juan, 6

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28001 – Madrid

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3/26

Public Administrations (hereinafter, LPACAP), was received on 11/12/2023 as evidenced by the acknowledgment of receipt in the file.

THIRD: On 29/12/2023, this Agency received a response letter from A.A.A., in which it acknowledges being responsible for the processing, with POSADA EL AZUFRAL S.C. being the commercial name of the hotel establishment.

In its letter, the responding party provides a report on the processing of personal data of the establishment and a report on the incident that occurred.

In summary, it should be noted that the responding party acknowledges being responsible for the processing of personal data of POSADA EL AZUFRAL, S.C., and admits that the events occurred as reported by the complainant, although it denies that there is a violation of personal data protection regulations, considering it necessary to require the customer to provide a photograph or copy of the traveler's identity document in order to verify the accuracy of the data that must be filled out in the traveler's check-in and check-out forms and the registration sheets established in the regulations of the Ministry of Interior for hotel establishments.

FOURTH: On January 9, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: On May 20, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the responding party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5.a) of the GDPR.

SIXTH: The aforementioned initiation agreement was notified with an electronic acknowledgment of receipt dated May 29, 2024, in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP). The responding party submitted a written statement of allegations dated June 10, 2024, in which, after noting that the aforementioned agreement was received in point one and confirming that the responding party is responsible for the processing of personal data of the clients of POSADA EL AZUFRAL in point two, literally states the following (points 3 to 8 of the statement of allegations):

“THIRD.- The procedure for check-in or 'pre-registration' is fully automated, requiring the guest to go through a process via one of the 4 options available: A) Online check-in without providing the Identity Document or passport. B) Online check-in providing the Identity Document or passport. C) In-person check-in without providing the Identity Document or passport. D) In-person check-in providing the Identity Document or passport. In all cases, both in the online format (the customer fills out the form directly) and in the in-person format (the data is entered on-site by the reception staff of the accommodation), the software application called Partee is used, provided through the corresponding

service contract with the supplier (and C/ Jorge Juan, 6 www.aepd.es 28001 – Madrid
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4/26

data processor) YNEEDS, YOUR INTELLIGENT IMAGING COMPANY S.L.U.

FOURTH.- The principle of data minimization seeks to limit the processing of personal data. However, it does not prohibit the automated dumping of personal data if an intelligent process for transferring information from a photograph or other medium is used, always with the same intention of covering the necessary information for the corresponding legal obligations (police report).

FIFTH.- We must clarify that between the data controller and the data processor, a data processing contract and a service provision contract have been signed, in accordance with the provisions of Article 28 of the GDPR.

SIXTH.- Through the ParTEE application, the data controller obtains the required personal data necessary for the completion of entry reports and traveler information.

SEVENTH.- At the moment guests make a reservation, they receive an online communication (email) days before their arrival for the purpose of online check-in. This check-in is performed from the Client's device. The application allows for the voluntary and intelligent scanning of the ID card, directly obtaining the necessary data, and this process can be bypassed if the guest fills in the data manually. In the event that the Client opts for the method of providing their ID for the intelligent scanning of information, the copy of the national identity document is not stored on the application's servers, but is only used temporarily for the extraction of necessary information. This fact was communicated to the B.B.B., as stated in the REPORT ON THE INCIDENT OF AUGUST 25 presented by Ms. A.A.A., at the request of the AEPD. That is to say, the Guest was aware at all times that a copy of their ID was not being kept.

EIGHTH.- In the event that the guest manually provides data, subsequent verification of their accuracy will be necessary, since the person at the establishment who receives the Guest is responsible for verifying the accuracy of the provided data and for this purpose requests identification from the Client. At all times, and during the reservation process, the guest is informed about who the data controller is, the purpose of the collected data, the recipients of the information, retention periods, and the legitimacy of the processing, allowing them to decide whether to proceed or not. Likewise, the data provided by the Client will be retained for the purpose of service provision and after the Guest's departure, retained for tax and billing purposes for the legally established period, after which such data will be deleted.

In defense of these allegations, the defendant provides as Annex I a screenshot showing the part of the form (point 3) of the Check-in of the PARTEE application, used for managing the reservation and guest registration process, where the photo of the Client's ID is requested, although in the informative note it states, "i) Your accommodation requires these captures to verify the data of the online check-in."

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5/26

SEVENTH: On September 30, 2024, the instructor issues a diligence to join the content of the privacy policy of the PARTEE application, contracted by the responding party, to the procedure. From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: On July 26, 2023, the claiming party made a reservation for a room through the website booking.com at the hospitality establishment POSADA EL AZUFRAL, S.C., for the dates August 25, 2023, to August 26, 2023, as evidenced by the reservation submitted along with the claim. This is deduced from the reservation provided by the claimant, the terms and content of which are acknowledged by the responding party.

SECOND: On the same date of July 26, 2023, an automatic email was sent to the claimant to voluntarily complete the early guest registration ("pre-registration" or "pre-check in online"), which included a link directing to the website of an application called "Partee." This is evidenced by the submission of the aforementioned email in the claim, the sending of which is acknowledged by the responding party.

THIRD: The procedure for checking in at the establishment can be done online or in person at the establishment through the PARTEE application, which has been contracted for this purpose by the establishment. As stated by the responding party in point 3 of its written allegations to the initiation agreement of June 10, 2024, and can be verified in the link to the application contained in the email sent to the claimant for the pre-check in: "In all cases, both in the online format (the customer fills out the form directly) and in the in-person format (the data is entered on-site by the reception staff of the accommodation), the software application called Partee is used, provided through the corresponding service contract with the supplier (and data processor) YNEEDS, YOUR INTELLIGENT IMAGING COMPANY S.L.U."

FOURTH: According to what is recorded as of July 26, 2023, according to the privacy policy of the application contracted by the responding party, PARTEE, the personal data to be collected in the online/in-person check-in processes are those indicated in sections e) and f), which allow the traveler to complete the registration process without the need to submit or scan a copy of their identity document, provided that the data from said document is manually entered into the PARTEE application by the establishment's staff, upon presentation of the document.

"PRIVACY POLICY OF THE PARTEE APPLICATION.

What personal data do we obtain from our clients' guests (...)

e. Photographs of ID cards or passports during in-person check-in. The in-person check-in of Partee is the procedure for capturing data and signing the

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6/26

guests in their presence. With the quadruple objective of a) ensuring the accuracy of the traveler reports (obligation set forth in section 3 of article 4 of RD 933/2021, which serves as the basis for legitimization for this processing), b) improving productivity in compliance with regulations, c) advancing digital transformation, and d) saving time for the guest and providing better service, our clients have the option to use the camera on their mobile device, or a desktop scanner or multifunction device, to obtain an image of the guest's identification document and automatically fill out the report, as opposed to a slow manual data entry. Partee will not store or distribute the images of these documents; it will simply use them to extract the personal data of the guests and fulfill the registration obligations established in the regulations. Once this task is completed, which takes only a few seconds, Partee will automatically delete these images. For the Partee client to use this automatic data capture functionality from the image of the ID or Passport, the guest must accept this privacy policy in the Partee application by selecting the corresponding checkbox. If the guest refuses to allow an image of their identification document to be obtained, the Partee client must fill out the data form using the keyboard, based on the identification document presented by the guest.

f. Photographs of IDs or Passports during online check-in. Partee's online check-in is a form of pre-registration or pre-check-in, aimed at providing better service to guests and streamlining the registration process, by capturing in advance the personal data of guests required by the regulations on guest registration. In online check-in, guests access a Partee web form where they can enter their personal data and sign comfortably and in just a few seconds. In the Partee web form, they are shown a direct link to this privacy policy, as well as a checkbox for the guest to accept it. If they do not accept it, Partee will not store or communicate any of the data entered by the guest; it will simply be discarded. In order to comply with the obligation set forth in section 3 of article 4 of RD 933/2021, which serves as the basis for legitimization for this processing, and which establishes that the establishment will be "responsible for the accuracy of the data recorded in them (referring to the

traveler reports), so that they match the documents or systems that verify the identity of the persons, which must be presented or provided by the users of these services," Partee clients can configure the Partee online check-in links so that Partee requests the guest to attach photographs of their identification document during online check-in. In these cases, if guests do not wish to provide photographs of their identification documents, they must request from the establishment either a link to online check-in that does not require attaching such photographs, or indicate to the establishment that they prefer to check in in person upon arrival at the establishment. In the event that the guest provides such images of their documents, Partee will send the photographs to the email of the Partee client managing the accommodation, so that they can verify the identity of the guests and the accuracy of the provided data, and, in case the Partee client does not receive or accidentally deletes the images received by email, Partee stores them on its servers.

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7/26

for a maximum of 5 calendar days, so that they can be consulted by the establishment, and will ALWAYS delete them after this maximum period has elapsed. If the client deletes this data before the 5 days, or if the guest expresses their desire to delete them, Partee will delete them without waiting for the 5 calendar days period."

FIFTH: Regarding the storage of photographs or photocopies of the identity document, in addition to being indicated in the privacy policy mentioned in the previous paragraph that the PARTEE application archives them for 5 calendar days, the entity being claimed acknowledges that the photographs obtained by the PARTEE application during the online check-in process are sent by email to the establishment for data verification, and that they are kept for the purposes provided by tax legislation for a period of 3 years. This is stated in the Report on the "data processing process" submitted on December 29, 2023, to this Agency, as follows:

"In the case of taking photographs of the document, these are sent by Partee at the moment the guest performs their online check-in. Once the data verification is completed, the photographs are deleted, and no record of these photographs is kept by A.A.A.. (...) The retention period for the data necessary for administration and accounting is as provided in tax legislation regarding the statute of limitations for liabilities. In the case of the data used for the preparation of traveler reports, the legislation establishes a retention period of 3 years for these."

SIXTH: Regarding the specific situation raised in the complaint, concerning the requirement for the claimant to provide a photograph/copy of their identity document to formalize their reservation, the following is documented in the file:

- At the time of online pre-check-in, the claimant informed the respondent that they did not wish to scan the photograph of their ID, and that they would take advantage of the option stated in the email received to present their ID during the in-person check-in process, which coincides with what is indicated in the privacy policy of the PARTEE application in its section e). This fact is not denied by the respondent and is evidenced by the submission of the message from e.booking.com that was sent by the claimant, which has been provided along with the complaint.
- On the start date of the reservation, August 25, 2023, the claimant appeared at the establishment to perform the in-person check-in and offered to present their ID so that the employee could enter the required data into the PARTEE application to complete the entry and exit reports for travelers required by the regulatory Order of the Ministry of the Interior that establishes this obligation. However, the establishment required the delivery of their ID for the purpose of scanning it and completing the data in the PARTEE application, indicating that it was a necessary requirement to formalize the registration. In response to the claimant's refusal to provide such a copy or photograph, requesting to complete a...

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In paper format, the establishment indicates that it does not have the possibility of completing the process on paper. As an alternative, the claimant proposes to record his details and verify their accuracy by showing his ID card to the staff, so that they could complete the check-in, which was also denied by the accommodation, which ultimately proceeded to cancel the reservation.

This has been acknowledged by the respondent in the "Report on the incident" submitted on December 29, 2012, which states the following:

"On August 25, the customer arrives at the inn, and upon entering, after his welcome, he is informed that he must check in. The process is carried out through the application, as he had been notified via messaging. The customer says that he will not use the application and asks us to do it for him. We inform him that we will proceed to scan his ID in front of him and in view for data capture, to which he refuses. After explaining the procedure again and that we will not keep any copy of his ID at any time, he states that it is unnecessary and that he knows what he is talking about, showing a badge in such a way that verification is not possible.

He is asked if he is a police officer and if he is identifying himself. The customer does not identify himself as a police officer, does not show his badge in a verifiable manner, nor does he identify himself with his agent number.

Given this suspicious behavior, we determined not to concede and informed him that his identification and verification of the provided data would be necessary. The customer says to take note on a paper that he shows us his ID and that he will sign the paper. We again indicate that communication is carried out electronically and that we do not have paper forms for travelers. Due to the customer's persistent refusal, we inform him that if we do not carry out the data verification, we will proceed to cancel his reservation and we communicate to him that as a gesture of good faith, we will refund the amount of his reservation, without having any obligation on our part."

LEGAL GROUNDS

I

Competence and procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Response to the allegations against the initiation agreement

The present procedure has been initiated for the alleged commission of an infringement of Article 5.1.c) of the GDPR, which regulates the Principle of data minimization, allegedly committed by the respondent by imposing on the claimant the requirement to provide a complete image or photograph of his identity document in order to check in at their hospitality establishment (Posada el Azufra), which has a physical reception and the possibility of online check-in for travelers. The respondent has presented allegations against the initiation agreement that have been fully reproduced in the initiation agreement.

Once the allegations presented have been analyzed, they must be dismissed for the following reasons:

1.

The processing of personal data for the registration of the entry and exit of travelers is automated, carried out through the PARTEE application contracted with the entity YNEEDS, YOUR INTELLIGENT IMAGING COMPANY S.L.U, requiring the guest to go through a process via one of the 4 options made available to them:

A) Online check-in without providing the Identity Document or passport.

- B) Online check-in providing the Identity Document or passport.
- C) In-person check-in without providing the Identity Document or passport.
- D) In-person check-in providing the Identity Document or passport.

Indeed, referring to the privacy policy of PARTEE, which is included in the link attached to the email sent to the claimant for online check-in, the content of which has been verified by this instructor on July 26, 2024, and is attached to this file, it is confirmed that the PARTEE application allows the registration process of the traveler to be formalized without the need to deliver/scan the photograph of the identity document of the traveler (guest in whose name the check-in is made), offering these 4 options to each customer (the service contractor, which is usually the establishment or its owner, which in this case is A.A.A.). However, it is also stated in the privacy policy that the customer can request that the application be configured to require such a photograph or copy, which is what happened in the present case.

Thus, this privacy policy states in its section: "What personal data do we obtain from our clients' guests (...)

e. Photographs of IDs or Passports during in-person check-in. (...) If the guest refuses to allow an image of their identification document to be obtained, the Partee client must fill out the form of 10/26

data entered via the keyboard, based on the identification document presented by the guest.

f. Photographs of IDs or Passports during online check-in. (...) In order to comply with the obligation set forth in section 3 of Article 4 of RD 933/2021, which serves as the legal basis for this processing, and which establishes that the establishment shall be "responsible for the accuracy of the data recorded therein (referring to the traveler forms), so that they coincide with the documents or systems that verify the identity of the persons, which must be exhibited or provided by the users of these services," Partee clients can configure the online check-in links of Partee so that Partee requests the guest to attach photographs of their identification document during online check-in. In these cases, if guests do not wish to provide photographs of their identification documents, they must request from the establishment either an online check-in link that does not require the attachment of such photographs, or indicate to the establishment that they prefer to check in in person upon arrival at the establishment (...)"

From the information presented in the privacy policy, it can be inferred that:

(i) The online check-in process of PARTEE does not require the photograph by default, but allows each client (hospitality establishment) to configure the online check-in links so that PARTEE requests the guest to attach these photographs, as occurred in the present case, where the defendant provides as Annex I a screenshot showing the part of the form (point 3) of Check-in of the PARTEE application, used for managing the reservation and guest registration process, where the photo of the Client's ID is requested, although in the informative note it states "i) Your accommodation requires these captures to verify the data of the online Check-in." This fact is also acknowledged in the reports submitted during the transfer phase of the file.

(i) In the process of in-person check-in, where it is the establishment's staff who fills in the data, the PARTEE application allows the document to be exhibited and does not require the photograph to be scanned in the application, but it is the establishment of the defendant that decides to request it, generally from all its travelers, as stated in its allegations, because it understands that the provision is necessary to comply with its legal obligations. This interpretation is erroneous for the reasons already indicated in the initiation agreement, to which we will refer later.

In any case, this argument can be dismissed because, although the PARTEE application may have allowed the completion of traveler registration forms without requesting the photographs and complying with the Principle of data minimization, it is the defendant, as the client, who requests that the application be configured to require the photograph, and who voluntarily decides to demand a copy of the document, and does not accept the possibility offered by PARTEE and the traveler for the latter to exhibit their document in the

moment of the in-person check-in for staff to verify and directly record the necessary data in this application.

It is important to note that in this case, although there is an option to perform an online pre-check-in that is voluntary for the traveler, there is an in-person reception of the traveler at the establishment on the scheduled day for the reservation, where the inn staff welcomes the traveler and requests a copy/photo of the identity document as a requirement to be able to stay at the establishment.

Therefore, even if the traveler decides not to perform the online check-in or does not provide the photograph of their identity document during it, this does not imply that they have the freedom to refrain from providing it, as the establishment will ultimately require it at the in-person reception as a condition for accommodation, not accepting that the traveler shows the document for the staff to complete and verify the accuracy of the data, as stated in this file.

1.

The respondent insists that it is necessary to require the delivery of a copy of the identity document to formalize the traveler's reservation, as it is needed to fulfill its obligation to verify the authenticity of the personal data contained therein, in accordance with the provisions of Royal Decree 933/2021, of October 26, which establishes the obligations of documentary registration and information of individuals or legal entities engaged in hospitality and motor vehicle rental activities (hereinafter, RD 933/2021).

In this regard, it is pertinent to reproduce the arguments contained in the initiation agreement, which are fully shared, in which it is explained in detail why the regulations governing the registration books and entry reports of travelers in hospitality establishments, as well as the obligation to communicate the information contained in the registration sheets to the State Security Forces and Corps, do not require at any time that a copy/photo of the identity document be provided, nor that all the data contained in that document be reported.

This regulation is fundamentally constituted by Organic Law 4/2015, of March 30, on the protection of citizen security (hereinafter, LO 4/2015), and Royal Decree 933/2021, of October 26, which establishes the obligations of documentary registration and information of individuals or legal entities engaged in hospitality and motor vehicle rental activities (hereinafter, RD 933/2021).

Article 24 of LO 4/2015 provides in its first section the following:

"Individuals or legal entities engaged in activities relevant to citizen security, such as hospitality (...) shall be subject to the obligations of documentary registration and information in the terms established by the applicable provisions."

These are currently established by the aforementioned RD 933/2021, to which the respondent refers, with Annex I. a), in its section 3 setting forth the data of travelers that must be mandatorily included in the so-called "Registration Sheet" that the responsible entity of the hotel must submit to the State Security Forces and Corps when it comes to professional hospitality establishments. Specifically, the following data of the traveler are legally required:

- a) Name.
- b) First surname.
- c) Second surname.
- d) Gender.
- e) Identity document number.
- f) Document support number.
- g) Type of document (DNI, passport, TIE).
- h) Nationality.
- i) Date of birth.
- j) Place of usual residence.– Full address.– Locality.– Country.
- k) Landline phone.
- l) Mobile phone.
- m) Email address.
- n) Number of travelers.

o) Relationship between travelers (in the case that any are minors).”

Consequently, according to this regulation, it is inferred that it is not mandatory to collect, register, or communicate to the competent authorities the image, photocopy, or complete photograph of the identity document of each traveler, but only some of the data contained therein such as: name and surnames, identification number, support number, type of document (DNI; passport... etc.), nationality, and date of birth.

It must be taken into account that the photograph or photocopy of the traveler's DNI (on both sides), passport, or other identity documents contains personal data that exceeds those required by this regulation, such as: the image or face of the traveler, the equipment number, or the names of the traveler's parents, regarding which there is no legal obligation to collect,

13/26

registration, and communication, in accordance with the aforementioned regulation. All of these would be personal data whose processing cannot be justified under the lawful basis of Article 6.1(c) of the GDPR, constituting excessive processing that is contrary to the data minimization principle established in Article 5.1(c) of the GDPR.

2.

It is argued that the PARTEE application does not store the photograph of the document, but rather performs an automatic data dump that originates from the scanning of the document, and that the traveler is informed that their personal data is not stored nor will it be used for other purposes.

In this regard, the respondent states: “At the moment guests make a reservation, they receive an online communication (email) days before their arrival for the online check-in. This check-in is done from the Client's device. The application allows for the voluntary and intelligent scanning of the ID card, directly obtaining the necessary data, and the guest can skip this process if they fill in the data manually.

In the event that the Client opts to provide their ID for the intelligent scanning of information, the copy of the national identity document is not stored on the application's servers, but is only used temporarily for the extraction of necessary information.”

This argument cannot be accepted for several reasons:

- From the privacy policy of PARTEE, it can be inferred that the application indeed incorporates an intelligent data dump scanning, typically performed using optical character recognition (OCR) software that automatically identifies the characters of a specific alphabet and stores them as data, that is, it converts the image into text, and enables the completion of the “customer form” or “traveler entry form,” which does not necessarily require the digital image to be stored. However, the use of these intelligent scans is not incompatible with the fact that, in addition to taking the data and automatically filling it in the form, the scanned images could be stored in the application for a certain period, as it is possible to configure various types of settings that allow for this archiving.

- In the present case, there is no doubt that when the traveler provides the photograph during the online check-in process, PARTEE does indeed store the images for 5 days, and that, furthermore, these are sent by email to the respondent, as expressly configured by the respondent, who states that they do not delete “the data used for the traveler report for a period of 3 years,” among which is this photograph, in order to comply with the deadlines set by tax legislation. This is deduced from the following evidence that has been established in the fifth proven fact of this proposal:

First of all, the respondent itself acknowledges that the photographs obtained by the PARTEE application - in the case where the traveler opts to provide the

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14/26

Photographs taken during the online check-in process are automatically sent by the PARTEE application to the establishment for data verification. This is stated in the Report on the "data processing procedure" submitted on December 29, 2023, to this Agency, as follows:

“In the case of taking photographs of the document, these are sent by PARTEE at the moment the

guest performs their online check-in. Once the data verification is completed, the photographs are deleted, and no record of such photographs is kept by A.A.A. This fact was communicated to B.B.B., as indicated in the REPORT ON THE INCIDENT OF AUGUST 25 presented by A.A.A., at the request of the AEPD. That is to say, the Guest was aware at all times that a copy of their ID was not being retained.

This aligns with what is stated in the PARTEE privacy policy that has been duly processed, from which it is clearly deduced that the photograph is stored in the application for 5 days, being sent to the client via email in the case of online check-in. Thus, the following is noted:

“f. Photographs of IDs or Passports during online check-in.. (...)”

In the event that the guest provides such images of their documents, Partee will send the photographs to the email address of the Partee client managing the accommodation, so that they can verify the identity of the guests and the accuracy of the provided data, and, in case the Partee client does not receive or accidentally deletes the images received by email, Partee stores them on its servers for a maximum of 5 calendar days, so that they can be consulted by the establishment, and will ALWAYS delete them after this maximum period. If before the 5 days the client deletes this data, or if the guest expresses their desire to delete it, Partee will delete it without waiting for the 5 calendar days.”

-

Regarding the storage of photographs when check-in is in person, the privacy policy of the PARTEE application states that the scanned photograph is not stored, according to section “e. Photographs of IDs or Passports during in-person check-in as follows: our clients have the option to use the camera of their mobile device, or a desktop scanner or multifunction device, to obtain an image of the guest's identification document and automatically fill out the report, as opposed to a manual and slow data entry. Partee will not store or distribute the images of these documents; it will simply use them to extract the personal data of the guests and comply with the registration obligations established in the regulations. Once this task is completed, which lasts only a few seconds, Partee will automatically delete these images (...)”

However, this does not imply that the images are not stored, as according to PARTEE, it is the establishment that can use the camera of its mobile device or a desktop scanner to obtain the image of the document that

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
15/26

The traveler delivers it, so although it may be true that the PARTEE application itself does not store the image, it cannot be ruled out that the devices listed on the server of the respondent do. This, moreover, would be the most logical conclusion in light of the line of argument maintained by the respondent in the "report on the data process" submitted to the procedure, since it insists that it must request this copy/scan the photograph because it is a mandatory data for the registration of traveler reports and that it is obliged to keep them for a period of 3 years to comply with its tax obligations. Furthermore, if this were the case, it must be said that it would make no sense to store the photographs obtained during the online check-in process and not to do so when the check-in is in person.

By virtue of its role as data controller, the respondent should be aware that when the traveler undergoes the online check-in process that requires the submission of a photograph, the PARTEE application is archiving the photograph and sending it to the establishment via email, which implies that the images transition from being on the client's device to being on the respondent's server, which then performs data processing operations on the photograph of the document (archiving and retention for a period of 3 years as it states in its allegations). On the other hand, when the establishment's staff scans the photo in the application using their devices, they are also using that image or photograph, thus performing excessive data processing operations by scanning it and retaining it. What Royal Decree 933/2021 allows them to store and retain for 3 years is not the photograph or image of the complete document itself, but the specific data specified in its Annex I. a), in section 3.

As can be appreciated from the above, the conclusions drawn from the analyzed facts go beyond the specific actions of the respondent regarding the claimant and relate to the design of the personal data management process implemented by this entity in general, a design that constitutes a personal data processing operation according to the broad concept of processing operations maintained by the Court of Justice of the European Union, and which, therefore, must be carried out considering that a lawful basis is necessary to process all the personal data requested from its travelers through the PARTEE application, which the respondent could have configured without requiring the submission of the identity document photograph during online check-in, asking for the document to be presented to fill in the data directly at the time of in-person check-in, but chose to expressly request its provider to require such a copy.

Therefore, the respondent has voluntarily decided to configure the application to require excessive information when it had the "technical" possibility not to do so, and has decided to request the photograph of the document at the in-person reception, when the applicable regulations did not require it to obtain the image of that document, which contains data for which there is no obligation to provide information, according to RD 933/2021.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

16/26

This implies that in its usual practice, it is acting contrary to the Principle of Minimization of personal data each time travelers are required to provide a photograph.

1.

Finally, regarding the lack of information about the necessity of providing a copy of the identity document prior to making a reservation on the platform.

The respondent states that it has verified that it configured booking.com to show travelers that this copy/photo is necessary to make the reservation before proceeding, providing screenshots and indicating that as additional measures it has requested booking.com to inform about this requirement. However, it should be noted that the purpose of this procedure is to determine whether there has been excessive processing of personal data contrary to Article 5.1.c) of the GDPR by requiring and storing copies of such documents, so the prior information provided to the traveler at the time of making the reservation is irrelevant in this procedure, as the infringement of Article 13 of the GDPR related to information on the processing of personal data has not been attributed, and it is not within the authority's competence to monitor compliance with the information conditions related to the contracting of accommodation services.

III

Unfulfilled obligation. Excessive data processing

The processing of personal data of individuals who book accommodation in hotel establishments (referred to as "travelers") must be governed by the principles outlined in Article 5 of the GDPR.

It is noteworthy, due to its relevance to the present case, the so-called "Principle of lawfulness and transparency" and "Principle of data minimization" provided in the first paragraph of the same, letters a) and c), respectively, which state:

"Article 5 Principles relating to processing

1. Personal data shall be:

a) processed lawfully, fairly, and transparently in relation to the data subject ("lawfulness, fairness, and transparency").

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ("data minimization")."

Furthermore, Article 5.2 of the GDPR states: "The data controller shall be responsible for compliance with the provisions of paragraph 1 and shall be able to demonstrate it."

Article 6 of the GDPR, relating to "Lawfulness of processing," determines in its paragraph 1 the circumstances under which the regulation allows the processing of personal data of a third party,

referred to as "lawful bases." If none of these circumstances or conditions apply, the processing will not be legitimate or considered lawful under the GDPR:

"1. Processing shall be lawful only if it meets at least one of the following conditions:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation of pre-contractual measures at the request of the data subject;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect vital interests of the data subject or of another natural person.
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

In the present case, once the allegations and documentation provided by the respondent during the phases of transferring the complaint and the allegations against the initiation agreement in the previous Legal Basis have been examined, it can be concluded that the respondent does not have a lawful basis to request the submission of a copy or photograph of the identity document of the travelers as a condition for their registration (check-in), which constitutes excessive and unnecessary processing of personal data contrary to the Principle of Data Minimization in Article 5.1.c) of the GDPR.

Given the concurrent circumstances, where the establishment has a prior voluntary online check-in process but requires the traveler to provide a photograph or image of their identity document as a condition for accommodation, it is understood that requiring the traveler to provide the image or photograph of these documents constitutes excessive processing of personal data, as they contain personal data that is inadequate, irrelevant, and unnecessary for the specific purpose of the processing in question (compliance with the legal obligations regarding the registration of travelers' check-in and check-out).

As previously stated, the photograph or photocopy of the traveler's ID (on both sides), passport, or other identity verification documents contains personal data that exceeds what is required by this regulation, such as: the image or face of the traveler, the equipment number, or the names of the traveler's parents, regarding which there is no obligation.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

18/26

legal collection, registration, and communication, in accordance with the aforementioned regulations. All of these would be personal data whose processing cannot be justified under the lawful basis of Article 6.1(c) of the GDPR, constituting excessive processing that is contrary to the principle of data minimization provided for in Article 5.1(c) of the GDPR.

Consequently, in accordance with the evidence available at the time the procedure is opened, and without prejudice to what results from the instruction, the aforementioned facts could constitute a violation by the respondent of the provisions of Article 5.1(c) of the GDPR, concerning the Principle of Data Minimization.

IV

Classification and qualification of the infringement

The known facts could constitute an infringement, attributable to the respondent, of Article 5.1(c) of the GDPR, with the scope expressed in the previous Legal Grounds, which, if confirmed, could imply the

commission of the infringement classified in Article 83.5, paragraph (a) of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states that:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9." In this regard, the LOPDGDD, in its Article 71 establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 of the LOPDGDD states:

"Article 72. Very serious infringements.

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

19/26

V

Proposed sanction

The infringement of Article 5.1(c) of the GDPR, provided for in Article 83.5 of the GDPR, may be sanctioned with a fine of up to 20 million euros, at most, as the responsible party is a natural person. The fine must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters (a) to (h) and (j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the

financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

20/26

On its part, regarding letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The link between the infringer's activity and the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party could have included the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

Taking into account the aforementioned criteria for graduation, and in light of the facts under review, it is considered that the amount of the fine that could correspond, without prejudice to what results from the instruction of the procedure, would be €1,500 (ONE THOUSAND FIVE HUNDRED EUROS).

VI

Corrective Measures

If the infringement is confirmed, it could be agreed to impose on the controller the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”.

Thus, the responsible entity may be required to adapt its actions to the personal data protection regulations, to the extent expressed in the previous Legal Grounds.

In this act, the presumed infringement committed and the facts that could lead to this possible violation of data protection regulations are established, from which it is clearly inferred what measures should be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, in accordance with the evidence available at this moment according to the initiation of the sanctioning procedure, in the resolution that is adopted, A.A.A. may be required to, within 2 months from the date of effectiveness of the resolution concluding this procedure, prove that it has adopted the following measures:

- Prove that it has established the necessary technical and organizational measures by introducing changes in its reservation management process, which are necessary to avoid the need to provide a photograph or copy of the traveler's identity document in the PARTEE application or any other system used to formalize the online and in-person check-in process.
- Prove that it has provided the necessary instructions to its staff so that they do not require the provision/scanning of copies or photographs of identity documents.

- Prove that it has proceeded to delete and eliminate the photographs of identity documents that it claims to retain for 3 years for submission to the authorities.

It is noted that the effective application of appropriate technical and organizational measures must be demonstrated, not only to comply with the regulations but also to demonstrate compliance to the supervisory authorities and interested parties.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate such conduct to open an additional sanctioning administrative procedure.

In light of the above, the following

PROPOSAL FOR RESOLUTION

FIRST: That the Director of the Spanish Agency for Data Protection sanctions A.A.A., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified in Article 83.5.a) of the GDPR, with a fine of €1,500 (ONE THOUSAND FIVE HUNDRED EUROS).

SECOND: That the Director of the Spanish Agency for Data Protection orders A.A.A., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, in the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

22/26

a period of 2 months, starting from the date of enforceability of the final resolution concluding this procedure, must demonstrate that the following measures have been adopted:

- Demonstrate that the necessary technical and organizational measures have been established by introducing changes in the reservation management process, which are necessary to avoid the requirement of providing a photograph or copy of the traveler's identity document in the PARTEE application or any other system used to formalize the online and in-person check-in process.
- Demonstrate that the necessary instructions have been given to staff so that they do not require the provision/scanning of copies or photographs of identity documents.
- Demonstrate that the photographs of identity documents that are said to be retained for 3 years for submission to the authorities have been deleted and removed.

THIRD: Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, you are informed that you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will entail a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 1,200 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that you choose to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, you must make it effective by depositing it into the restricted account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the sanction amount. Additionally, you must send the proof of payment to the General Subdirectorato of Inspection to proceed with closing the file.

FOURTH: Therefore, you are notified of the above, and the procedure is made known to you so that within TEN DAYS you may present any arguments you consider in your defense and submit the documents and information you deem pertinent, in accordance with Article 89.2 of the LPACAP.

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(...)

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C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

23/26

ANNEX

Index of file EXP202316537

22/10/2023 Complaint from B.B.B.

13/11/2023 Extension of complaint from B.B.B.

22/11/2023 Transfer of complaint to POSADA EL AZUFRAL

29/12/2023 Response to information request from A.A.A. as data controller of POSADA EL AZUFRAL.

09/01/2024 Communication of admission to processing to B.B.B.

21/05/2024 Agreement to initiate sanctioning procedure against A.A.A. and its notification.

31/05/2024 Communication of initiation of procedure to B.B.B.

10/06/2024 Allegations to the Initiation Agreement submitted by A.A.A.

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SECOND: On October 29, 2024, the respondent has proceeded to pay the sanction in the amount of 1,200.00 euros making use of the reduction provided for in the previously transcribed resolution proposal.

THIRD: The respondent has expressly waived any action or appeal in the administrative route against the sanction.

FOURTH: In the previously transcribed resolution proposal, the facts constituting the infringement were confirmed, and it was proposed that the Director impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

24/26

Processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, insofar as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures"

provides as follows:

- “1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with regard to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

III

Voluntary payment

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified resolution proposal allowed for the voluntary payment of the proposed sanction, which would entail a 20% reduction of its amount. With the application of this reduction, the sanction would be established at 1,200.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the aforementioned resolution proposal, and before a resolution was issued by this authority, the party being claimed, on October 29, 2024, proceeded to make the voluntary payment, availing themselves of the 20% reduction and waiving any action or administrative appeal.

It should be noted that, in accordance with the provisions of the LPACAP, as well as the jurisprudence of the high court in this matter, the exercise of voluntary payment by the presumed responsible party does not exempt the administration from the obligation to resolve and

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

25/26

to notify all procedures, regardless of their form of initiation. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any other matters arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infractions and TO CONFIRM the sanctions determined in the dispositive part of the resolution proposal transcribed in this resolution.

The sum of the aforementioned amounts results in a total of 1,500.00 euros.

After the respondent has proceeded with prompt payment, although without acknowledgment of responsibility, a reduction of 20% of the total mentioned is applied, resulting in a final amount of 1,200.00 euros.

SECOND: TO DECLARE the termination of procedure EXP202316537, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO ORDER A.A.A. to notify the Agency of the adoption of the measures described in the legal grounds of the resolution proposal transcribed in this resolution within 2 months from the date this resolution becomes final and enforceable.

FOURTH: TO NOTIFY this resolution to A.A.A.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment on the withdrawal or renunciation of any action or appeal in the administrative

route, the express renunciation stated by the respondent is accepted by this authority, thus precluding the filing of an optional appeal for reconsideration against this resolution, all without prejudice to the possibility of resorting to the contentious-administrative jurisdiction.

Consequently, taking into account the provisions of Article 90 of the LPACAP, since no administrative appeal is possible due to the express renunciation, this resolution will be fully enforceable from the notification thereof.

However, in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

1331-15012025

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

C/ Jorge Juan, 6

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28001 – Madrid

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